

EXHIBIT E

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No. 302748/2016

Date Purchased: 8/18/2016

SUMMONS-----X
JUSTIN PERRIN,

Plaintiff(s),

Plaintiff designates BRONX
County as the place of trial.

-against-

The basis of venue is:
Place of occurrence
County of BronxTHE CITY OF NEW YORK and NEW YORK CITY
POLICE DEPARTMENT,Defendant(s),
-----XPlaintiff resides at:
820 Astor Avenue, Apt 4C
Bronx, NY 10467**To the above named Defendant:**

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bronx, NY
August 8, 2016
MICHAEL BRAVERMAN
GETZ & BRAVERMAN, P.C.
Attorneys for Plaintiff
JUSTIN PERRIN
172 E. 161st Street
Bronx, New York 10451
(718) 993-3000
Our File No.: 8946BRONX COUNTY CLERK
2016 AUG -8 PM 4:16

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DEFENDANT'S ADDRESSES

THE CITY OF NEW YORK

100 Church Street

New York, New York 10007

NEW YORK CITY POLICE DEPARTMENT

100 Church Street

New York, New York 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX-----X
JUSTIN PERRIN,

Plaintiff(s),

Index No.:

-against-

THE CITY OF NEW YORK and NEW YORK CITY
POLICE DEPARTMENT,Defendant(s),
-----XVERIFIED
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BRONX COUNTY

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Plaintiff, by and through his attorneys, **GETZ & BRAVERMAN, P.C.**, complaining of
the defendants alleges upon information and belief as follows:

1. Upon information and belief, that at the time of the commencement of this action, Plaintiff **JUSTIN PERRIN**, resided in the County of Bronx, State of New York.
2. That the cause of this action alleged herein arouse in the County of Bronx, City and State of New York.
3. That this action falls within one or more of the exemptions set forth in CPLR Section 1602.
4. Upon information and belief, that at all times hereinafter mentioned, Defendant **THE CITY OF NEW YORK**, was and still is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.
5. Upon information and belief, that at all times hereinafter mentioned, Defendant **THE CITY OF NEW YORK** was and still is a domestic corporation duly organized and existing under and by virtue of the laws of the State of New York.
6. Upon information and belief, that at all times hereinafter mentioned, Defendant

THE CITY OF NEW YORK was and still is a foreign corporation duly organized and existing under and by virtue of the laws of the State of New York.

7. Upon information and belief, that at all times hereinafter mentioned, Defendant THE CITY OF NEW YORK maintained a principal place of business in the County of New York, State of New York.

8. Upon information and belief, that at all times hereinafter mentioned, NEW YORK CITY POLICE DEPARTMENT, was and still is a municipal corporation duly organized and existing unde5 and by virtue of the laws of the State of New York.

9. Upon information and belief, that at all times hereinafter mentioned, Defendant NEW YORK CITY POLICE DEPARTMENT was and still is a domestic corporation duly organized and existing under and by virtue of the laws of the State of New York.

10. Upon information and belief, that at all times hereinafter mentioned, Defendant NEW YORK CITY POLICE DEPARTMENT was and still is a foreign corporation duly organized and existing under and by virtue of the laws of the State of New York.

11. Upon information and belief, that at all times hereinafter mentioned, Defendant NEW YORK CITY POLICE DEPARTMENT maintained a principal place of business in the County of New York, State of New York.

12. Upon information and belief, that at all times hereinafter mentioned, the defendant, THE CITY OF NEW YORK, its agents, servants, employees and/or licensees operated, maintained and controlled the NEW YORK CITY POLICE DEPARTMENT, including all the police officers thereof.

13. Upon information and belief, and at all times hereinafter mentioned, Defendant NEW YORK CITY POLICE DEPARTMENT its agents servants and employees supervised, maintained and controlled its personnel.

14. On or about the 24th day of March, 2016, Plaintiff was granted permission by the Court to file a late Notice of Claim nunc pro tunc upon the Defendant **THE CITY OF NEW YORK AND NEW YORK CITY POLICE DEPARTMENT**, which Notice of Claim advised the Defendants, of the nature, place, time and manner in which the claim arose, the items of damage and injuries sustained so far as was then determinable.

15. At least thirty (30) days have elapsed since the service of the claim prior to the commencement of this action and adjustment of payment thereof has been neglected or refused, and this action has been commenced within one year and ninety (90) days after the happening of the event upon which the claims are based.

16. That as of this writing a 50H Hearing has not been requested and/or conducted.

FACTUAL ALLEGATIONS

17. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "16" with the same force and effect as if more fully set forth herein.

18. That on or about the 20th day of May, 2015 plaintiff, **JUSTIN PERRIN**, was arrested and was taken to the 47th precinct located at East 219 Paulding Ave, Bronx, NY, for one (1) day.

19. That on or about the 20th day of May, 2015, the Plaintiff **JUSTIN PERRIN** was wrongfully and falsely arrested, detained and imprisoned, without any right or grounds therefore.

20. That on or about the 20th day of May, 2015, the defendants acting within the scope and authority of their employment and office, wrongfully and falsely accused the plaintiff, **JUSTIN PERRIN**.

21. That the said arrest and imprisonment of plaintiff, **JUSTIN PERRIN**, were

caused by the said defendants, their agents, servants and employees, without legal process, without authority of the law and without any reasonable cause, or belief, that the plaintiff, **JUSTIN PERRIN**, was in fact guilty of such crimes.

22. That the said arrest of the plaintiff herein was caused, allowed and permitted by the defendants herein, their agents, servants and/or employees, wrongfully, unlawfully, against the plaintiff's wishes, without probable or reasonable cause, and on the charges made.

23. That the defendants, their agents, servants and/or employees falsely arrested the plaintiff, compelled him to go with New York City Police officers pursuant to the instruction and will of the above named defendants, detained and imprisoned plaintiff in a New York State correctional facility, and continued to detain and imprison the plaintiff, and at other diverse places and times, including, but not limited to, Central Booking located in the Borough of Bronx, City and State of New York.

24. That the said defendants, their agents, servants and/or employees, acting within the scope of their authority and within the scope of their employment, caused the plaintiff herein to be arrested, detained and imprisoned, even though the defendants, their agents, servants and/or employees, had the opportunity to know, or should have known, that the matters hereinbefore alleged, wrongfully, unlawfully and without a sufficient charge having been made against the plaintiff, directed that the plaintiff be, arrested, searched, detained and placed in confinement at said locations.

25. That as a result of the aforesaid accusations made by the said defendants, their agents, servants and employees, acting under the scope of their office and within the scope of their authority, made falsely, publicly, wickedly and maliciously, plaintiff, **JUSTIN PERRIN**, was held in custody by members of the New York City Police Department.

26. That the defendants, their agents, servants and/or employees, as set forth on the

aforementioned date, time and place, intended to cause the arrest, detention and imprisonment of the plaintiffs herein; plaintiff was conscious of the said arrest, detention, and imprisonment; and that said arrest, detention and imprisonment was not otherwise privileged.

27. That the aforesaid occurrence, false arrest and imprisonment of the plaintiff, was caused wholly and solely by reason of the negligence of the defendants, their agents, servants and/or employees without any negligence of the part of the plaintiff herein.

28. That by reason of the aforesaid, the plaintiff was greatly injured in his credit and circumstances; was prevented from performing and transacting their necessary affairs and business; and was incapacitated from their usual occupation.

29. That by reason of the aforesaid, the plaintiff has been damaged in an amount which exceeds the jurisdictional limits of all lower courts which otherwise would have jurisdiction.

AND AS FOR A SECOND CAUSE OF ACTION
ON BEHALF OF PLAINTIFF

30. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "29", with the same force and effect as if more fully and at length set forth herein.

31. That on or about the 20th day of May, 2015, and prior and subsequent thereto, in the County of Bronx, City and State of New York, the defendants, acting within the scope and authority of their office and employment, carelessly, recklessly, maliciously and negligently caused, permitted, allowed, created and instigated the prosecution, and continuing prosecution, of the plaintiff with deliberate indifference.

32. That the plaintiff was wholly innocent, and was forced by the defendants, their agents, servants and/or employees, to submit to lengthy Court proceedings.

33. That on or about the 20th day of May, 2015, and prior and subsequent thereto,

the defendants, their agents, servants and employees falsely and maliciously, without probable cause or provocation charged the plaintiff with various crimes, including felonies, misdemeanors and violations.

34. That the said prosecution, criminal charges and hearings were instituted and procured by the defendant, their agents, servants and/or employees in this action unlawfully, maliciously and without reasonable or probable cause, with actual malice and was terminated in plaintiff's favor.

35. That the aforesaid occurrence, false arrest, imprisonment of the plaintiff and malicious prosecution, was caused solely and wholly by reason of the negligence of the defendant's, their agents, servants and/or employees without any negligence on the part of the plaintiff herein.

36. That by reason of the aforesaid, the plaintiff was greatly injured to his credit and circumstances; was prevented from performing and transacting his necessary affairs and business. Upon information and belief, the plaintiff have expended diverse sums of monies, in an effort to extricate themselves from the imprisonment, foisted upon them by the actions of the defendants, their agents, servants and employees, including counsel fees and disbursements; and, upon information and belief, will expend further sums in that direction.

37. That by reason of the aforesaid, the plaintiff has been damaged in an amount which exceeds the jurisdictional limits of all lower courts which otherwise would have jurisdiction.

AS AND FOR A THIRD CAUSE OF ACTION
ON BEHALF OF PLAINTIFF

38. Plaintiffs repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "37" , with the same force and effect as if more fully set forth herein.

39. That the defendant, THE CITY OF NEW YORK, acting within the scope and authority of its office and employment, their agents, servants and/or employees recklessly, carelessly and negligently, performed their duties as police officers, in that they failed to use such care in the performance of their duties as reasonably prudent and careful police officers would have used under similar circumstances; in that they were reckless, careless, and negligent in the manner in which they declared the plaintiff in violation of the law; in that they caused, permitted and allowed the plaintiff to be, pursued, apprehended, detained, prosecuted and imprisoned in violation of their civil rights; in that they used the threat of imprisonment, and actually caused the imprisonment of the plaintiffs, in that they made false accusations on or about May 20, 2015, in that the defendants, their agents, servants and/or employees were otherwise careless, reckless and negligent.

40. That the defendant, THE CITY OF NEW YORK, acting within the scope and authority of its office and employment, their agents, servants and/or employees recklessly, carelessly and negligently, performed their duties as police officers, in that they failed to use such care in the performance of their duties as reasonably prudent and careful police officers would have used under similar circumstances; in that they caused, permitted and allowed the plaintiffs to be, pursued, apprehended, detained, prosecuted and imprisoned in violation of their civil rights; in that they used the threat of imprisonment, and actually caused the imprisonment of the plaintiff, in that they made false accusations on or about May 20, 2015, in that the defendants, their agents, servants

and/or employees failed to recognize that plaintiff's right had been unjustly violated, and in that the defendants, their agents, servants and/or employees were otherwise careless, reckless and negligent.

41. That the aforesaid occurrence, false arrest and imprisonment of the plaintiff, malicious prosecution, and negligent performance of duties, was caused solely and wholly by reason of the negligence of the defendants, their agents, servants and/or employees without any negligence on the part of the plaintiffs herein.

42. That by reason of the aforesaid, the plaintiff was injured in mind, still suffers, and upon information and belief will continue to suffer; has been greatly injured in their credit and circumstances; was prevented from performing and transacting their necessary affairs and business. Upon information and belief plaintiffs have expended diverse sums of monies and incurred debt, in an effort to extricate themselves from the imprisonment, foisted upon her by the actions of the defendants, their agents, servants and employees, including counsel fees and disbursements.

AS AND FOR A FOURTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF

43. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "42", with the same force and effect as if more fully set forth herein.

44. That the defendants, **NEW YORK CITY POLICE DEPARTMENT**, acting within the scope and authority of its office and employment, their agents, servants and/or employees recklessly, carelessly and negligently, performed their duties as police officers, in that they failed to use such care in the performance of their duties as reasonably prudent and careful police officers would have used under similar circumstances; in that they were reckless, careless, and negligent in the manner in which they declared the plaintiff in violation of the law; in that they caused,

permitted and allowed the plaintiffs to be, pursued, apprehended, detained, prosecuted and imprisoned in violation of their civil rights; in that they used the threat of imprisonment, and actually caused the imprisonment of the plaintiffs, in that they made false accusations on or about May 20, 2015, in that the defendants, their agents, servants and/or employees were otherwise careless, reckless and negligent.

45. That the defendants, **NEW YORK CITY POLICE DEPARTMENT**, acting within the scope and authority of its office and employment, their agents, servants and/or employees recklessly, carelessly and negligently, performed their duties as police officers, in that they failed to use such care in the performance of their duties as reasonably prudent and careful police officers would have used under similar circumstances; in that they caused, permitted and allowed the plaintiff to be, pursued, apprehended, detained, prosecuted and imprisoned in violation of their civil rights; in that they used the threat of imprisonment, and actually caused the imprisonment of the plaintiff, in that they made false accusations on or about May 20, 2015, in that the defendants, their agents, servants and/or employees failed to recognize that plaintiff right had been unjustly violated, and in that the defendants, their agents, servants and/or employees were otherwise careless , reckless and negligent.

46. That the aforesaid occurrence, false arrest and imprisonment of the plaintiff, malicious prosecution, and negligent performance of duties, was caused solely and wholly by reason of the negligence of the defendants, their agents, servants and/or employees without any negligence on the part of the plaintiffs herein.

47. That by reason of the aforesaid, the plaintiff was greatly injured in their credit and circumstances; was prevented from performing and transacting their necessary affairs and business. Upon information and belief plaintiffs have expended diverse sums of monies and incurred debt,

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NYSCEF DOC. NO. 16

INDEX NO. 302748/2016E

RECEIVED NYSCEF: 05/17/2023

in an effort to extricate themselves from the imprisonment, foisted upon him by the actions of the defendants, their agents, servants and employees, including counsel fees and disbursements.

AS AND FOR A FIFTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF

48. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "47" inclusive with the same force and effect as if more fully and at length set forth herein.

49. That the defendants **THE CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT**, acting within their scope and authority of their office and employment, in their capacity as a law enforcement office, was negligent and careless in the supervision, maintenance and control of police officers under their supervision and more particularly the supervision of the members of the **NEW YORK CITY POLICE DEPARTMENT** in that the defendants failed to exercise due care and caution in their supervision of same and in particular causing, permitting and allowing police officers under their supervision, and more particularly the defendants' agents, servants, employees and/or licensees, to act in a careless, reckless and negligent manner without administering proper control, discipline and supervision thereby allowing police officers involved herein, to act in an unlawful and illegal manner; in causing, permitting and allowing persons within the employ of the **CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT**, search plaintiff **JUSTIN PERRIN** in that the defendants knew, or should have known, of the lack of ability, experience, deportment and maturity of the said defendant police officers under their care, supervision and control and more particularly those police officers with a propensity to act in unlawful and illegal manner; and that said agents, servants and employees failed to properly investigate actions taken by police officers under their care, supervision and control, and were otherwise careless and negligent.

50. That the aforesaid occurrence, false arrest and imprisonment of the plaintiff, malicious prosecution, negligent performance of duties, negligent hiring and retention and negligent supervision and training, was caused solely wholly by reason of the negligence of the defendants, their agents, servants and/or employees without any negligence on the part of the plaintiff herein.

51. That by reason of the aforesaid, the plaintiff was greatly injure in their credit and circumstances; were prevented from performing and transacting their necessary affairs and business; and were prevented to perform their usual occupation. Upon information and belief, plaintiffs have expended and incurred diverse sums of money in an effort to extricate themselves from the indignities and humiliation imposed upon him by the actions of the defendants, their agents, servants and employees, including counsel fees and disbursements, and upon information and belief, will expend further sums in that direction.

52. That by the reason of the aforesaid, the plaintiffs have been damaged in an amount which exceeds the jurisdictional limits of all lower courts which otherwise would have jurisdiction.

AS AND FOR A SIXTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF

53. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "52" inclusive with the same force and effect as if more fully and at length set forth herein.

54. That on or about May 20, 2015, in the County of Bronx, City and State of New York, at which time and place defendants their agents, servants and/or employees and /or licensees, were acting within the scope of their employment, authority and office as part of their regular and official employment as employees for The City of New York and The New York City Police Department.

55. As plaintiff was lawfully and properly enjoying his right as a citizen of the United

States of America, said defendants' employees of The New York City Police Department, their agents, servants and/or employees, who having the real and apparent ability to cause imminent harmful and offensive injury, and the power and authority to warrant for the arrest, detention, prosecution and imprisonment of the Plaintiff, did so threaten these acts upon the plaintiff, and did so cause the plaintiff herein to be arrested, detained, prosecuted and imprisoned, stripped and searched and in violation of plaintiff's civil rights; in ailing to recognize, detect and investigate same; in revoking the rights of the plaintiff herein; in failing to train, monitor, control and/or supervise their agents, servants and/or employees; and in prosecuting and continuing to prosecute the plaintiffs.

56. That defendant, their agents, servants and employees failed to properly and adequately ascertain that plaintiffs were not in violation of the law and that plaintiff was detained, prosecuted and imprisoned for an extended period of time, depriving them of their rights and liberties as set forth in the Constitutions of the United States of America and of the State of New York, handcuffed him and threatened plaintiffs wit the possible use of firearms and weapons and the use of physical force; in that they continued to detain, prosecute and to imprison, the plaintiffs without any conduct on the part of the plaintiffs to so warrant, to wit:

- a) in that all the actions of the defendants, their agents, servants and/or employees, acting within scope and authority of their employment and office, committed with the intention to cause economic and metal injury to the plaintiff, arrested, detained, prosecuted and imprisoned the plaintiff without hers consent; plaintiff was at all times conscious of her arrest, detainment, prosecution and imprisonment did not consent to the arrest, detainment, prosecution and imprisonment; and the arrest, detainment, prosecution and imprisonment was not otherwise privileged; and
- b) the arrest, detention, prosecution and imprisonment were not justified by probable cause or other legal privilege; defendants, their agents, servants and employees, acting under the color of the statute, ordinances, regulations, customs and usages of the he United States of America, the State of New York, City of New York and

County of Bronx, within the scope of their employment and under the authority of their office as employees of The New York City Police Department for said state.

- c) that the defendants, their agents, servants and/or employees, acting within the scope and authority of their office and employment, caused and unlawful arrest, detention, prosecution and imprisonment of the plaintiff thus depriving him of his freedom and civil rights as guaranteed by the Constitution of the United States of America when they in a willful, wanton, reckless, careless and negligent manner deprived the plaintiff of her due process, liberty and freedom without her consent and with the intention of causing harm and deprivation of her freedom and civil liberties, all without warrant, probable cause whatever; and,
- d) that the defendants, their agents, servants and employees failed to adequately and properly train, supervise, monitor, discipline or in any other way control the behavior and performance of police officers, their agents, servants and/or employees; that in their practices in the exercise as a police officer, their exercise of supervisory functions and their failure to enforce the laws fo the United States of America, the State and City of New York is evidence of the careless and negligent lack of cautious regard for the rights of the public including the plaintiff herein; in that they exhibited a lack of that degree of due care which prudent and reasonable individuals, and reasonable police officers would show in the execution of, and functions of the police officers; and,
- e) the failure of the defendants, their agents, servants and employees to hire, train, supervise, discipline or in any other way control the defendants, in the exercise of their functions; in that their failure to enforce the laws fo the United States of America, the State of New York and the City of New York were carried out carelessly and negligently and without regard for the consequences, so as to display a careless and negligent disregards for the dangers of harm and injury to the citizens of the United State of America, and the State and City of New York including, plaintiff; and,
- f) due to the acts of the defendants, their agents, servants and employees, and the failure of the defendants, to control, discipline, train, monitor, supervise and/or properly hire personnel under their care, supervision and control, and the continued employment of same presents a clear and present danger to the citizens of the United States of a America and the City and State of New York; and,
- g) That the said arrest, detention, prosecution and imprisonment were instituted and procured by the defendant, their agents, servants and

employees, under the scope and authority of their office and employment in this action, unlawfully, carelessly and negligently and without any reasonable or probable cause whatsoever therefor. That the commencement and/or continuation of the revocation of freedom; hearing and criminal proceedings by the said defendants against the plaintiff was without probable cause with actual malice and was ultimately terminated in favor of the plaintiff, and,

- h) that the defendants, their agents, servants and/or employees, acting within the scope and authority of their office and employment, permitted the use of policy, and or drafted policy that was violating the Constitutional rights of the above named plaintiff; and, in that each and all of the employees alleged herein were done not as individuals but under the color and pretense of the statutes, ordinances, regulations, customs and usages of the State of New York, the City of New York and the County of Bronx, and under the authority of their office as police officers for said State, City and County.

57. Defendants did not have probable cause to arrest, detain, prosecute and imprison the plaintiff before, after or at the time of this incident and deprive plaintiff of her Constitutional rights as set forth in the Constitutional rights as set forth in the Constitutions of the United States, particularly 42 U.S.C. Sec. 1983 and the Constitution of the United States of America.

58. Defendants, did not have probable cause to arrest, detain, prosecute and imprison plaintiff before, after or at the time of this incident, and failed to properly safeguard the plaintiff's Constitutional rights as set forth in the Constitution of the United States, particularly 42 U.S.C. Sec. 1983 and the Constitution of the State of New York.

59. As a direct result of the aforesaid actions and conduct of the part of the said defendants, their agents, servants and/or employees, plaintiff was falsely arrested, detained, prosecuted and imprisoned and was compelled to be arraigned and appear in the Criminal Court system of the City and State of New York, County of Bronx and to undergo a criminal proceeding(s).

60. That at all times hereinafter mentioned, the defendants were employed in their

respective capacities by the New York City Police Department and were acting within the scope and authority of their office and employment under the color of their official capacity and their acts were performed under the color of the policies statutes, ordinances, rules and regulations of the New York City Police Department.

61. That at all times hereinafter mentioned, defendants, their agents servants and/or employees were acting pursuant to orders and directives from defendants, and acting within the scope and authority of his/their employment and office.

62. That at all times hereinafter mentioned, defendants, their agents servants and/or employees, were acting pursuant to orders and directives from defendants, within the scope and authority of their employment and office.

63. That at all times hereinafter mentioned, defendants, their agents, servants and/or employees, were acting pursuant to, and within the scope and authority of their employment and office.

64. That during all times hereinafter mentioned, the defendants, their agents, servants and/or employees, and each of them separately, and in concert, acted under color and pretense of law, to wit: under color of the statutes, ordinances, regulations, customs and usages of The New York City Police Department and the defendants herein, separately and in concert, engaged in the reckless, careless and negligent conduct herein mentioned to the injury and detriment of the plaintiff and deprived plaintiff by the First and Fourteenth Amendments to the Constitution of the State of New York and the laws of the City and State of New York.

65. The defendants, their agents, servants and/or employees, were employed by the Police Department of the City of New York, acting under color of law, have subjected plaintiff and other persons to a pattern of conduct consisting of false arrest, detention, prosecution and imprisonment and that said defendants, their agents, servants and/or employees did not confer due process upon

the plaintiff herein, and in denied the rights, privileges and immunities guaranteed plaintiff and other citizens of the United States of America by the Constitution of the United States of America.

66. This systematic pattern of conduct consists of a large number of individual acts of violations of plaintiff's civil rights, and other citizens, by employees of The New York City Police Department and more particularly the defendant employees, their agents, servants and/or employees, in acting in concert with persons unknown to the plaintiff and under color of law, and said acts, while carried out under color of law, within the scope and authority of their office and employment, having no justification or excuse in law and are instead reckless, careless and negligent, unrelated to any activity in which police officers may properly, appropriately and legally engage in the course of protecting persons or property or ensuring civil order.

67. Although defendants knew or should have known of the fact that this pattern of conduct was carried out by their agents, servants and/or employees, defendants have not taken any steps or made any efforts to halt this course of conduct, to make redress to the plaintiff or other citizens injured thereby, or to take any disciplinary action whatever against any of their employees or agents.

68. The conduct of the defendants, their agents, servants and/or employees, deprived plaintiff of the following rights, privileges and immunities secured to them the Constitution of the United States and of the State of New York:

- a) The right of plaintiff to be informed of the nature and cause of the accusation against him as secured to him under the Sixth and Fourteenth Amendments of the Constitution of the United States; and
- b) The right of plaintiff not to be deprived of life, liberty or property without due process of law, and the right to the equal protection of the laws secured by the fourteenth Amendment to the Constitution of the United States.

69. That by reason of the aforesaid negligence, false arrest and false imprisonment,

malicious prosecution, negligent performance of duties, negligent hiring and retention, negligent training and supervision, and violation of civil rights caused by the defendants, their agents, servants and employees, acting within the scope and authority of their office and employment, who conspired together to enter into a nefarious scheme to wrongfully deprive the plaintiffs, and compel them to abandon their rights and privileges as provided to them in the Constitution of the United States of America, and provided to them in the Constitution of the State of New York, and laws thereto, the defendants, their agents, servants and employees violated 42 U.S.C. Sec. 1983 in that the defendants, their agents, servants and employees acted as persons who under color of any statute, ordinances, regulation, custom or usage of the City of New York and the State of New York, subjected or caused to be subjected, citizens of the United States of America or other persons within the jurisdiction, particularly the plaintiff thereof to be deprived of their rights, privileges and immunities received by the Constitution and laws of the United States of America and of the State of New York; were subjected to great indignities and humiliation, and pain and distress of mind and was held up to scorn and ridicule, injured their character and reputation, were prevented from attending their usual business and vocation and were injured in their reputation in the community and the acts aforementioned were committed with the aim of injuring and damaging plaintiff.

70. That the aforesaid occurrence, false arrest and imprisonment of the plaintiff, malicious prosecution, negligent performance of duties, negligent hiring and retention, negligent supervision and training and violation of civil rights, was cause solely and wholly by reason of the negligence of the defendants, their agents, servants and/or employees without any negligence on the part of the plaintiff herein.

71. That by reason of the aforesaid, the plaintiff was injured in mind and body, still suffers, and upon information and belief, has been subjected to great indignities, humiliation and ridicule; was greatly injured in their credit and circumstances; was prevented from performing and transacting their necessary affairs and business; and they were incapacitated from their usual

occupation. Upon information and belief, plaintiffs have expended diverse sums of monies, and incurred debt, in an effort to extricate themselves from the imprisonment, indignities and humiliation foisted upon them by the actions of the defendants, their agents, servants and employees, including counsel fees and disbursement and, upon information and belief, will expend further sums in that direction.

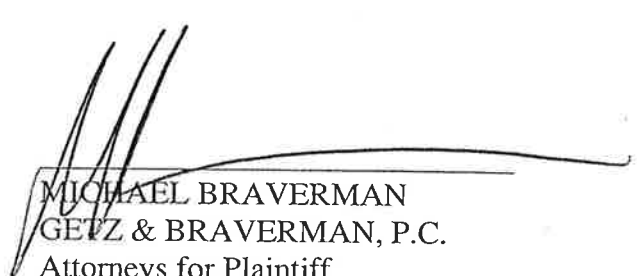
72. That by reason of the aforesaid, the plaintiffs requests the following relief:

- a) Punitive damages in an amount which exceeds the jurisdictional limits of all lower courts which otherwise would have jurisdiction.
- b) Compensatory damages in the amount which exceeds the jurisdictional limits of all lower courts which otherwise would have jurisdiction.

WHEREFORE, plaintiff demands judgment against the defendants in an amount which exceeds the jurisdictional limits of all lower courts which otherwise would have jurisdiction on all Counts of this action, and on the County for punitive damages, and reasonable attorney's fees, together with costs and disbursements of this action and such other and further relief that this Court may deem just, proper and equitable under the circumstances.

Dated: Bronx, New York

August 8, 2016



MICHAEL BRAVERMAN
GETZ & BRAVERMAN, P.C.
Attorneys for Plaintiff
JUSTIN PERRIN
172 East 161st Street
Bronx, New York 10451
(718) 993-3000
Our File No.: 8946

PLAINTIFF'S VERIFICATION

STATE OF NEW YORK

COUNTY OF BRONX

SS:

Justin Perrin, being duly sworn, says:

I am a Plaintiff in the action herein: I have read the annexed Summons + compliant and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my personal files.

DATED:

Bronx, New York
August 8, 2016Justin PerrinSworn to before me this
8 day of August, 2016

Notary Public

MICHAELINA BRAVERMAN
NOTARY PUBLIC, STATE OF NEW YORK
BRONX COUNTY 02256035120
Certificate Filed in
Bronx County
Commission Expires 12-27-2017

Index No.
SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

JUSTIN PERRIN,

Plaintiff(s),

-against-

THE CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT,

Defendant(s).

SUMMONS AND VERIFIED COMPLAINT

GETZ & BRAVERMAN, P.C.
Attorneys for JUSTIN PERRIN
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Bronx, New York 10451
(718) 993-3000

TO: THE CITY OF NEW YORK
100 Church Street
New York, NY 10007

NEW YORK CITY POLICE DEPARTMENT
100 Church Street
New York, New York 10007